

25STCV30404 25STCV30404

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-06-30

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Case Number: 25STCV30404 Hearing Date: June 30, 2026 Dept: 617

Dept.

617

Date:

6-30-26

Case

#: 25STCV30404

Trial

Date: None Set

TRANSFER/CHANGE VENUE

MOVING

PARTY: Defendants, Hyundai Motor Company and Supernal LLC

RESPONDING

PARTY: Plaintiff, Diana Cooper

RELIEF

REQUESTED

Motion

to Change Venue/Transfer the Action to Orange County Superior Court

SUMMARY

OF ACTION

In

or around 2020, Hyundai Motor Group established Defendant Supernal LLC for the development of its eVTOL aircraft. Plaintiff Diana Cooper, an experienced aviation and policy expert, was recruited to help lead Supernal's strategy, regulation, and commercialization efforts. Plaintiff alleges Supernal began to marginalize her after she warned it of safety and regulatory risks and raised concerns about gender discrimination in the company. Her access to senior leadership was restricted, she was excluded from key leadership discussions at Hyundai Motor Company's (HMC) Korea headquarters, and her leadership authority was dismantled. Plaintiff further alleges that she went on medical leave due to the emotional harm caused by derailment of her career and that she was wrongfully terminated while on leave. On May 15, 2026, Plaintiff filed a First Amended Complaint asserting multiple causes of action under the Fair Employment and Housing Act (FEHA), among other claims.

RULING: Granted.

Evidentiary Objections: The Court

only rules on objections material to disposition of the motion. Objection No. 1 to the Declaration of Chapman C. Chan is overruled.

Defendant HMC, joined by Supernal, moves to transfer the instant action to Orange County Superior Court. It argues that venue is improper in Los Angeles County under the FEHA's mandatory venue statute and the general corporate venue statute. Plaintiff opposes the motion, maintaining the propriety of venue in Los Angeles County. Because the FEHA venue statute compels venue in Orange County, HMC's motion is granted and the action is transferred.

"Except

as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action. If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action." (Code Civ. Proc., § 395, subd. (a).)

“Except

as otherwise provided in Section 396a, if an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurs, or moves to strike, or, at his or her option, without answering, demurring, or moving to strike and within the time otherwise allowed to respond to the complaint, files with the clerk, a notice of motion for an order transferring the action or proceeding to the proper court, together with proof of service, upon the adverse party, of a copy of those papers. Upon the hearing of the motion the court shall, if it appears that the action or proceeding was not commenced in the proper court, order the action or proceeding transferred to the proper court.” (Code Civ. Proc., § 396b, subd. (a).)

“Venue

is determined based on the complaint on file at the time the motion to change venue is made.” (Brown v. Superior Court (1984) 37 Cal.3d 477, 482.) In a FEHA action, venue is proper in the county in which: (1) “the unlawful practice is alleged to have been committed”; (2) “the records relevant to the practice are maintained and administered”; or (3) “the aggrieved person would have worked . . . but for the alleged unlawful practice” (Gov. Code, § 12965, subd. (c)(3).) “[I]f the defendant is not found within any of these counties, an action may be brought within the county of the defendant’s residence or principal office.” (Ibid.) “[T]he special provisions of the FEHA venue statute control in cases involving FEHA claims joined with non-FEHA claims arising from the same facts.” (Brown, supra, 37 Cal.3d at p. 487.)

Venue

is determined here based on Plaintiff’s original complaint because it was the complaint on file at the time HMC filed its motion to transfer. The special provisions of the FEHA venue state govern because Plaintiff asserted FEHA claims and her FEHA and non-FEHA claims all arose from the alleged adverse conditions of her employment. The question is thus where venue is proper under the statute.

Venue

is proper in Orange County under the FEHA venue statute. Orange County is where the unlawful practices are alleged to have been committed because Plaintiff

alleged in her complaint that the “injuries and damages suffered by Plaintiff were directly caused by Defendants’ wrongful conduct originating from and occurring within Orange County.” [Compl. ¶¶ 21-22.] The records relevant to the practice are maintained in Orange County because Brandy Wamala, Sr. Manager of Total Rewards and HR Operations at Supernal, states in her declaration that personnel files and documents relating to Plaintiff’s employment are located in Irvine. [Wamala Decl. ¶ 9.] And Plaintiff would have worked in Orange County but for the alleged unlawful practice because she pled in her complaint that she performed her work in Irvine and Wamala testifies that Plaintiff’s job duties are performed at Supernal’s headquarters in Irvine. [Compl. ¶ 24; Wamala Decl. ¶ 6.] Venue is therefore mandatory under three of the statutory criteria.

Plaintiff’s

argument that venue is proper via the venue selection clause in the Confidential Information, Intellectual Property Assignment, and Arbitration Agreement with Supernal is unavailing. While the agreement provides for venue in Los Angeles County for employment-related claims not subject to arbitration [Chan Decl. ¶ 2, Ex. A, p. 9; see Compl. ¶ 21], “agreements fixing venue in some location other than that allowed by statute are a violation of [public] policy” and are unenforceable. (Alexander v. Superior Court (2003) 114 Cal.App.4th 723, 731-32.) As explained above, here, the FEHA venue statute mandates venue in Orange County, not Los Angeles County. HMC’s motion is therefore granted.

The

action is ordered transferred to Orange County Superior Court. All scheduled items on calendar are vacated.

HMC

to give notice.